

**MEMORANDUM OF UNDERSTANDING BETWEEN
STATE OF WYOMING, DEPARTMENT OF STATE PARKS AND CULTURAL
RESOURCES, DIVISION OF STATE PARKS, HISTORIC SITES & TRAILS
AND
CITY OF CHEYENNE, WYOMING**

1. **Parties.** The parties to this Memorandum of Understanding (MOU) are the State of Wyoming, Department of State Parks and Cultural Resources, Division of State Parks, Historic Sites & Trails (Agency), whose address is: 2301 Central Avenue, Cheyenne, WY 82001, and the City of Cheyenne, Wyoming (City), whose address is: 2101 O'Neil Avenue, Cheyenne, WY 82001.
2. **Purpose.** The purpose of this MOU is to set forth the terms and conditions under which the Agency will oversee and disburse legislatively approved funding to the City to provide qualified project management for the High Plains Arboretum Rehabilitation Project (Project).
3. **Term of MOU.** This MOU shall commence upon the day and date last signed and executed by the duly authorized representatives of the parties to this MOU and shall remain in full force and effect until terminated. This MOU may be terminated, without cause, by either party upon thirty (30) days written notice, which notice shall be delivered by hand or by certified mail.
4. **Payment.**
 - A. Agency shall disburse funds to the City in an amount not to exceed three million, three hundred twenty-three thousand, seven hundred and fifty-seven dollars (\$3,323,757.00). Payment shall be made after the Agency approves the City's detailed funding requests and receives executed contracts from the City. The total Project cost shall not exceed the spending authority appropriated by the Legislature.
5. **Responsibilities of Agency.** Agency agrees to:
 - A. Disburse funds to the City in accordance with Section 4, above.
 - B. Review and approve, if appropriate, detailed requests for funding the Project from the City prior to their procurement.
6. **Responsibilities of City.** City agrees to:
 - A. Use funds disbursed by the Agency in accordance with Section 024 of House Enrolled Act 50, 2024 Budget Session complete with the Governor's vetoes, exercised.

- B. Provide the Agency with detailed requests for funding the Project. Procurement of services shall not commence until approved by Agency.
- C. Arrange for qualified supervision and management of the Project.
- D. Execute contracts and amendments, including for professional services, general contractors, and specialty contractors, for the completion of the Project. Procurement of services shall be in accordance with applicable rules and regulations. City shall ensure no funding provided hereunder shall be used to fulfill any obligations aside from the Project, including but not limited to, any indemnification requirements set forth in such contracts.
- E. Review and approve Project plans, when necessary.
- F. Obtain and pay for any applicable permits as required by authorities having jurisdiction.
- G. Allow Agency access to the site to conduct field observations for compliance with project requests.
- H. Pay invoices for services completed. City shall certify the accuracy of all pay requests for the disbursement of funds and provide material invoices or other acceptable evidence of mature obligations, which shall include periodic construction pay applications approved by the City. City shall be responsible for all additional and overage costs caused by an inaccuracy of any pay application.
- I. Not hold the Agency responsible or liable for compliance with Project construction schedules or completion dates.
- J. For the operation, preventative and routine maintenance, and major maintenance of the Project upon completion.
- K. Not assign or delegate any of its obligations under this MOU.

7. **General Provisions.**

- A. **Amendments.** Either party may request changes in this MOU. Any changes, modifications, revisions, or amendments to this MOU which are mutually agreed upon by the parties to this MOU shall be incorporated by written instrument, executed and signed by all parties to this MOU.
- B. **Applicable Law.** The construction, interpretation, and enforcement of this MOU shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this MOU and over

the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

- C. Availability of Funds.** Each payment obligation of either party is conditioned upon the availability of government funds which are appropriated or allocated for the payment of this obligation. If funds are not allocated and available for the continuance of the services performed by either party, the MOU may be terminated by either party at the end of the period for which the funds are available. Each party shall notify the other party at the earliest possible time of the services which will or may be affected by a shortage of funds. No penalty shall accrue to either party in the event this provision is exercised, and neither party shall be obligated or liable for any future payments due or for any damages as a result of termination under this section. This provision shall not be construed to permit either party to terminate this MOU to acquire similar services from another party.
- D. Entirety of Agreement.** This MOU, consisting of four (4) pages represents the entire and integrated agreement between the parties and supersedes all prior negotiations, representations and agreements, whether written or oral.
- E. Prior Approval.** This MOU shall not be binding upon either party unless this MOU has been reduced to writing before performance begins as described under the terms of this MOU, and unless this MOU is approved as to form by the Attorney General or her representative.
- F. Severability.** Should any portion of this MOU be judicially determined to be illegal or unenforceable, the remainder of the MOU shall continue in full force and effect, and the parties may renegotiate the terms affected by the severance.
- G. Sovereign Immunity.** The State of Wyoming, Agency and City do not waive sovereign or governmental immunity by entering into this MOU, and each fully retains all immunities and defenses provided by law with respect to any action based on or occurring as a result of this MOU.
- H. Third Party Beneficiary Rights.** The parties do not intend to create in any other individual or entity the status of third party beneficiary, and this MOU shall not be construed so as to create such status. The rights, duties, and obligations contained in this MOU shall operate only between the parties to this MOU and shall inure solely to the benefit of the parties to this MOU. The provisions of this MOU are intended only to assist the parties in determining and performing their obligations under this MOU.

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8. **Signatures.** The parties to this MOU, through their duly authorized representatives, have executed this MOU on the dates set out below, and certify that they have read, understood, and agreed to the terms and conditions of this MOU as set forth herein.

The Effective Date of this MOU is the date of the signature last affixed to this page.

STATE OF WYOMING, DEPARTMENT OF STATE PARKS AND CULTURAL RESOURCES, DIVISION OF STATE PARKS, HISTORIC SITES & TRAILS

Nicholas L. Neylon, Deputy Director

Date

CITY OF CHEYENNE, WYOMING

Patrick Collins, Mayor

Date

Attest:

Kristina F. Jones, City Clerk

ATTORNEY GENERAL'S OFFICE: APPROVAL AS TO FORM

Meg Pope # 248279
Megan Pope, Senior Assistant Attorney General

5/6/25
Date